

**CHAPTER xvi.**

An Act to extend the limits of supply of the
Conway Gas Company Limited and for other
purposes. [25th May 1939.]

WHEREAS by the Conway Gas Order 1880 confirmed by the Local Government Board's (Gas) Provisional Order Confirmation Act 1880 the mayor aldermen and burgesses of the borough of Conway (in this Act referred to as "the corporation") were authorised to construct gas works and to supply gas throughout the borough of Conway: 43 & 44 Vict. c. xxxiii.

And whereas by the Conway Gas Act 1909 the limits of supply of gas by the corporation were extended to include parts of the then parishes of Llangwstenin and Llechwedd in the then rural district of Conway: 9 Edw. 7. c. xi.

And whereas by the Ministry of Health Provisional Order Confirmation (Conway Extension) Act 1927 the borough of Conway was extended to include part of the said parish of Llangwstenin and the detached part of the then parish of Penrhyn in the said rural district of Conway and the areas added to the borough were included within the limits of supply by the corporation of gas under the said Order of 1880 and the said Act of 1909: 17 & 18 Geo. 5. c. xlv.

And whereas in pursuance of the said Order of 1880 the corporation erected gas works and supplied gas within the borough of Conway and in particular in

the year one thousand nine hundred and thirty-three the corporation constructed a trunk gas main along the county road from Deganwy to Llanrhos for a distance of one mile four furlongs or thereabouts and also constructed branch mains therefrom and supplied gas from such mains to consumers :

And whereas by the Caernarvonshire Review Order 1934 (in this Act referred to as "the Review Order") the urban district of Llandudno which adjoins the borough of Conway was extended to include part of the borough of Conway (in this Act referred to as "the transferred area") which included the area described in the schedule to this Act but article 48 of the Review Order provided that except as otherwise expressly provided in the said article nothing in the Review Order should alter the area for the supply of gas water or electricity by any company body or local authority under any local Act Provisional Order Confirmation Act or Order made in pursuance of the Gas Undertakings Acts 1920 to 1932 or the Electricity (Supply) Acts 1882 to 1933 or should prejudice or affect the existing powers or charges of any such company body or local authority under any such Act or Order :

And whereas by an agreement dated the twelfth day of November one thousand nine hundred and thirty-six and made between the corporation of the first part the Conway Gas Company Limited (in this Act referred to as "the Company") of the second part and Stellite Limited of the third part the corporation agreed to sell and the Company agreed to purchase the gas undertaking of the corporation for the sum of fifty-two thousand one hundred and fifty pounds subject to the approval of Parliament and the Board of Trade and on the thirtieth day of November one thousand nine hundred and thirty-six the Company applied to the Board of Trade for a Special Order under the Gas Undertakings Acts 1920 to 1934 to authorise the Company to purchase the gas undertaking of the corporation in accordance with the said agreement and to supply gas throughout the borough of Conway and the transferred area :

And whereas on such application the urban district council of Llandudno (in this Act referred to as "the

Llandudno Council ") represented that as the result of an arrangement made with the corporation the Llandudno Council had laid gas mains in the transferred area and were giving supplies of gas to properties on certain estates therein and the Llandudno Council furnished maps showing the gas mains which by arrangement with the corporation the Llandudno Council had so laid as aforesaid and requested that the whole of the transferred area should be omitted from the draft of the Special Order for which the Company had applied :

And whereas as the result of such representations a director of the Company in the month of December one thousand nine hundred and thirty-six purported on behalf of the Company to arrange with the Llandudno Council that the whole of the transferred area should be excluded from the limits of supply of the Company under the said draft Special Order and the Board of Trade were notified of the representations made by the Llandudno Council and of the purported arrangement so made :

And whereas the Llandudno Council thereupon applied to the Board of Trade for a Special Order under the Gas Undertakings Acts 1920 to 1934 to carry out the said purported arrangement and to extend the limits of supply of gas of the Llandudno Council to include the greater part of the transferred area :

And whereas the draft of the Special Order for which the Llandudno Council had applied as aforesaid as laid by the Board of Trade before both Houses of Parliament for approval as required by the Gas Regulation Act 1920 defined the limits of supply of the Llandudno Council so as to include (inter alia) the area described in the schedule to this Act through which the said trunk gas main had been constructed by the corporation along the county road from Deganwy to Llânrhos in the year one thousand nine hundred and thirty-three and in which branch mains had been laid therefrom and the said draft Special Order prohibited the corporation from exercising within this area any of the powers conferred on them in respect of their gas undertaking :

10 & 11
Geo. 5. c. 28.

And whereas the said draft Special Order having been approved by resolution of both Houses of Parliament was made by the Board of Trade on the ninth day of July one thousand nine hundred and thirty-seven without any knowledge of the existence in the area included in the said draft Special Order of the said trunk gas main and branch mains of the corporation :

19 & 20

Geo. 5. c. 24.

And whereas under section 7 of the Gas Undertakings Act 1929 the powers of the Board of Trade to make a Special Order authorising the applicants therefor to supply gas in any area within the limits of supply of any existing undertakers and prohibiting the existing undertakers from exercising in the area any of the powers conferred on them in respect of their undertaking are limited to the case of existing undertakers who have failed at the date of the application to lay down or provide mains for the supply of gas in the area and the making of the said Special Order for which the Llandudno Council had applied was therefore ultra vires the Board of Trade :

And whereas the Company purchased the undertaking of the corporation in accordance with the said agreement of the twelfth day of November one thousand nine hundred and thirty-six which was scheduled to and confirmed (as thereby amended) by the Conway Gas Company Limited Order made by the Board of Trade on the tenth day of July one thousand nine hundred and thirty-seven (in this Act referred to as " the Conway Gas Order 1937 ") :

And whereas in the month of March one thousand nine hundred and thirty-eight it came to the knowledge of the board of directors of the Company that the greater part of the transferred area although within the limits of supply of the corporation at the date of the said agreement of the twelfth day of November one thousand nine hundred and thirty-six had been included in the limits of supply of the Llandudno Council and further that the Company were supplying gas to consumers from the said trunk gas main and branch mains which had been laid by the corporation as aforesaid under the powers of the said Conway Gas Order 1880 and form part of the undertaking of the corporation acquired by the Company and are partly

within and partly without the limits of supply of the Company as defined in the Conway Gas Order 1937 :

And whereas the Llandudno Council have refused to concur with the Company in an application to the Board of Trade for a Special Order under the Gas Undertakings Acts 1920 to 1934 to transfer to them that part of the transferred area in which the corporation were at the date of the Llandudno Gas Order 1937 and the Company still are supplying gas (being the area described in the schedule to this Act) and the Board of Trade have intimated that without such concurrence they cannot entertain an application by the Company for a Special Order for the transfer to the Company of the said part of the transferred area :

And whereas it is expedient that the Company should be authorised to continue the supply of gas from the said trunk main and branch mains and that the said part of the transferred area should be included in the limits of supply of the Company and that the Llandudno Council should be prohibited from exercising in such area any of the powers conferred on them in respect of their gas undertaking :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Conway Gas Act 1939. Short title.

2. In this Act unless the subject or context otherwise requires— Interpre-
tation.

“The Company” means the Conway Gas Company Limited ;

“The corporation” means the mayor aldermen and burgesses of the borough of Conway ;

“The Llandudno Council” means the urban district council of Llandudno ;

“The Conway Gas Order 1937” means the Conway Gas Company Limited Order 1937.

Extension
of limits
of supply.

3.—(1) The limits within which the Company were authorised to supply gas by the Conway Gas Order 1937 shall extend to and include the area described in the schedule to this Act and the Company within such area shall have and shall be deemed to have had since the coming into operation of the Conway Gas Order 1937 all and the like powers rights privileges and authorities and shall be deemed to have been subject to all and the like duties liabilities and obligations for and in relation to the supply of gas as they have and are subject to within their existing limits of supply For the purpose of better identification the area described in the schedule to this Act is delineated and coloured pink on the plan signed by the Right Honourable Baron Teynham the chairman of the committee of the House of Lords to whom the Bill for this Act was referred of which plan copies have been deposited in the Committee and Private Bill Office of the House of Commons and the Parliament Office of the House of Lords and at the offices of the Board of Trade and of the Company.

(2) The Company may continue maintain and use the gas mains pipes and other works belonging to them within the said area which were laid down and constructed by the corporation under the powers of the Conway Gas Order 1880 and the provisions of the Conway Gas Order 1937 shall apply to the said mains pipes and other works in all respects as if the same had been laid down or constructed under the authority of that Order.

(3) The Llandudno Council are hereby prohibited from exercising within any part of the area described in the schedule to this Act any of the powers conferred on them in respect of their gas undertaking by the Llandudno Gas Acts and Orders 1854 to 1937.

Costs of
Act.

4. All costs charges and expenses preliminary to and of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be defrayed out of revenue.

The SCHEDULE referred to in the
foregoing Act.

So much of the urban district of Llandudno as lies to the south of an imaginary line drawn from a point on the south-western boundary of the said district at its intersection with the eastern boundary of Maes-du Avenue in a north-easterly direction along the eastern boundary of Maes-du Avenue to the north-western corner of the enclosure numbered 23 on the 1/2500 Ordnance map Carnarvonshire sheet IV.8 (edition of 1912) thence in a north-easterly direction along the north-western boundary of the said enclosure and of the enclosure numbered 22 on the said Ordnance map to the north-eastern corner of the last-mentioned enclosure thence in a south-easterly direction along the north-eastern boundary of the said enclosure numbered 22 to the northern boundary of the Deganwy-Llanrhos road thence along the northern boundary of the said road to the eastern boundary of the property known as Pen-y-lan thence in a northerly direction along the eastern boundary of the said property to a point one hundred feet north of the northern boundary of the said road thence in an easterly direction parallel to and at a distance of one hundred feet from the northern boundary of the said road to the boundary of the borough of Conway as it existed immediately prior to the Caernarvonshire Review Order 1934 thence first in a south-easterly then in a north-easterly and ultimately in a south-easterly direction following the said boundary to the point where it joins the limits of supply of the Company as defined in the Conway Gas Order 1937 on the western side of the drive leading to Gloddaeth from the southern entrance lodge at the junction of the roads from Deganwy and Conway to Penrhyn Bay.

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Act, 1939.*

2 & 3 Geo. 6.

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